

Superior Court of California, County of Tuolumne

Consolidated Calendar

Hon: Sarah Carrillo

Department 2

August 28, 2026

8:30 am

DA Case #

Date Filed

9 CV65497

Christi Kolberg vs. Estate of James Walsh et al

08/11/2023

Christi Kolberg

Pro Per

Estate of James Walsh

Caroline Walsh Snook

Attorney: Timothy Trujillo

Motion Hearing - Summary Judgment

Case Management Conference

FURTHER

Motion Hearing - Other

FURTHER- Terminate Sanctions Against Plaintiff

08/11/2023 Complaint

File Tracking

07/28/2025 Dept. 1 Calendar/Clerk

This is a family dispute regarding equitable ownership of certain real property located on Lynn Lane in Sonora, or a monetary equivalent thereto. The property was owned by John Walsh, who died on 05/17/2021. His brother James commenced an *intestate* probate proceeding on John's behalf (see PR12140), despite John allegedly having a will leaving everything to his non-relative live-in caregiver (see PR12029). During that administration, James died, leaving his own intestate estate to be administered (see PR12267). Meanwhile, John's live-in caregiver (Christi) filed this civil action claiming that John promised her that if she moved in and provided him with care/comfort in his waning years, that upon his passing he would gift her his home. Since James caused that property to be inventoried as part of John's *intestate* estate, the clear implication here is that the home would eventually go to family, not Christi.

Before the Court this day are two UNOPPOSED DISPOSITIVE motions filed by the defense. This court ordered defense counsel to provide courtesy copies of all moving papers to Plaintiff's physical address (in addition to the general mail box they have been using). For reasons which remain a mystery, plaintiff – possessed of at least some arguable claim to a portion of the subject property (see TR dtd 10/18/2024 and 04/25/2025) – has failed to heed this court's warnings and elected to face these dispositive motions with no opposition. To make matters worse, she failed to respond to discovery, prompting this Court to grant various discovery motions – including the "death knell" motion deeming all of the RFAs admitted. Finally, because plaintiff has continued to abuse the discovery process by refusing to comply with this Court's order to supply verified responses to written discovery *other than* RFAs, she is faced with serious evidence sanction concerns.

Discovery Motion – Granted in part

Trial courts enjoy broad discretion in selecting which discovery sanction to impose in the face of discovery abuses. When evaluating what type of sanction is warranted, trial courts obviously consider the aggravating factors like time lost waiting for compliance, the materiality of the information sought, the responding party's knowledge and ability to comply, and any history of discovery shenanigans. On the flip side, a trial court cannot impose sanctions as vengeance. The sanction must be appropriate to the dereliction and not a windfall to the propounding party. When in doubt, trial courts are to adhere to a "lesser sanction first" philosophy, to wit: only if lesser sanctions fail to curb misuse should a trial court consider something like a terminating sanction. See *City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal.5th 46, 63; *Valencia v. Mendoza* (2024) 103 Cal.App.5th 427, 447; *Victor Valley Union High School Dist. v. Superior Court* (2023) 91 Cal.App.5th 1121, 1158; *Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 800. Plaintiff's refusal to comply with a court order obligating her to provide verified responses to an RPD must be addressed with an evidence sanction barring her from introducing or offering any evidence relevant to that RPD that might disclose the existence of a triable issue of fact on the pending MSJ.

Summary Judgment - Granted

Pursuant to CCP §437c(b)(3), the opposing party's failure to file a separate statement in opposition to the motion may, in the court's discretion, constitute a sufficient ground for granting the motion. Filing an opposition serves to aid the trial court in discharging its statutory duties, assists the court in focusing and articulating the evidentiary basis for a ruling and without an opposition a trial court is not burdened to determine the existence and significance of facts not mentioned by a party. See *Batarse v. Service Employees Internat. Union, Local 1000* (2012) 209 Cal.App.4th 820, 829; *Whitehead v. Habig* (2008) 163 Cal.App.4th 896, 902; *North Coast Business Park v. Nielsen Construction Co.* (1993) 17 Cal.App.4th 22, 31-32; compare *Thatcher v. Lucky Stores, Inc.* (2000) 79 Cal.App.4th 1081, 1085-1086. Additionally, based on the history of plaintiff's failure to respond to discovery despite multiple court orders to do so, this court has reason to believe no opposition papers would be filed even if the plaintiff was afforded another opportunity to do so. For all the reasons set forth in the memorandum, the problems previously analyzed by this Court in its rulings from 10/18/2024 and 04/25/2025, the fact that plaintiff is now deemed via the RFA order to have admitted all adverse facts, and given the evidence sanction barring her from introducing new evidence here, defendant met their burden and are entitled to summary judgment. Motion GRANTED.